

September 14, 2026
Dept. 9
Probate Tentative Rulings

11.	26PR0155	IN THE MATTER OF THE WILLIAM A. JONES & MARY H. JONES TRUST DATED MAY 11, 1994
PETITION HEARING		

On August 7, 2026, Petitioners, Donna Foster and Susan Lewis (collectively "Petitioners"), filed a Second Amended Verified Petition. Proof of Service of the notice of hearing was filed on August 7, 2026. No opposition has been filed.

Petitioners assert that despite repeated requests for accountings, supporting documentation, inventories, appraisals, and clarification regarding trust property and administration, Trustee, Margaret A. Jones ("Trustee" or "Respondent"), has failed to provide such information and documentation. Petitioners allege that Respondent has proposed purchasing trust real property while acting as Trustee and exercising authority over valuation, administration, and proposed sale procedures which have been met by objection by Petitioners and other beneficiaries.

Petitioners contend that Respondent has asserted rights to reimbursements and offsets relating to alleged cleanup and maintenance expenses despite disputes concerning documentation, authorization, valuation, and occupancy benefits. Petitioners believe that occupancy of trust property by family members of Respondent may have occurred without payment of fair rental value.

Petitioners believe neutral administration is necessary due to family conflict, disputed transactions, disputed asset classification, disputed occupancy issues, and concerns regarding impartiality.

Petitioners request the following:

1. Remove Margaret A. Jones as Trustee and/or Co-Trustee;
2. Appoint John DePiazza as neutral successor fiduciary and trustee;
3. Order a full accounting;
4. Require preservation of all trust records and assets;
5. Prohibit transfer or sale of disputed property without court approval;
6. Determine ownership and classification of disputed assets and claims; and
7. Determine whether occupancy, rental value, reimbursement, offsets, or surcharge claims exist relating to occupancy of trust property by beneficiaries, family members, non-beneficiaries, or third parties.

TENTATIVE RULING #11:

APPEARANCES ARE REQUIRED AT 8:30 A.M. ON MONDAY, SEPTEMBER 14, 2026, IN DEPARTMENT NINE.

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IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.